



POLICE DEPARTMENT

October 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303151 (Incident Date: April 12, 2023) regarding Sergeant Jadd Zahrieh, Tax No. 965635 (DADS No. 2024-31366)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303151, pertaining to Sergeant Jadd Zahrieh. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Zahrieh would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant Zahrieh conducted a lawful stop where he observed an individual in violation of a Vehicle and Traffic Law offense (not wearing seatbelt). Since the individual refused to provide identification for Sergeant Zahrieh to issue a summons, as he stated was his intention to do so, the individual created a situation where Sergeant Zahrieh was within his authority to place him into custody in order to verify his identity. Sergeant Zahrieh made numerous attempts to verbally gain compliance from the individual, however, instead of exiting the vehicle, the individual continued to back away, form an aggressive posture, clench his fists and verbally threaten the Sergeant. It was at this time that Sergeant Zahrieh, un-holstered his CEW and pointed it at the individual, without activating. The purpose of this action was to de-escalate the situation and gain voluntary compliance, as permitted within the Patrol Guide.

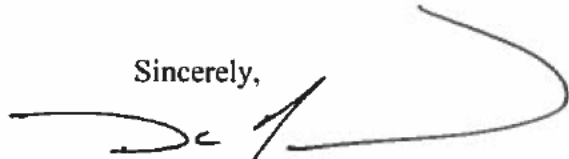
After attempting numerous de-escalation techniques, and once outside the vehicle, the individual continued to actively resist the officer's attempts to handcuff him. Eventually the individual was able to escape the officers and flee on foot. Sergeant Zahrieh deployed his CEW and the individual was able to safely be taken into custody. Throughout the encounter, by his actions and words, the individual exhibited an intent to defeat the officer's attempts to gain control and prevent further escalation. Sergeant Zahrieh was within his authority to utilize the CEW in order to take the individual into custody. Fleeing was not the only justification for using the CEW. The officers were required to make a quick decision and avoid the risk of injury to the individual and others. The CEW was deployed on a flat, unobstructed surface.

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Sergeant Zahrieh for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 7, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303151 SGT Jadd Zahrieh Tax No. 965635 (DADS No. 2024-31366)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 3, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Sergeant Zahrieh. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after analyzing the facts and circumstances of this matter, you have determined that it would be detrimental to the Police Department to serve the Charges and Specifications against Sgt. Zahrieh. The CCRB respectfully disagrees with your assessment and reasoning.

Although § 87(2)(b) was stopped due to a violation of the Vehicle and Traffic Law (VTL), that does not justify Sgt. Zahrieh’s actions. On the contrary, his actions were directly contradictory to the Patrol Guide.

NYPD Patrol Guide, Procedure 221-08 states: Conducted Electrical Weapons (“CEWs”) should only be used against persons who are actively resisting or exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present. Fleeing should not be the sole justification for using a CEW against a subject. Members should consider the severity of the offense, the subject’s threat level to others, and the risk of serious injury to the subject before deciding to use a CEW on a fleeing subject. CEWs should generally not be used in situations where the subject may fall from an elevated surface.

§ 87(2)(b) who was seated in the back of the vehicle, and did not pose a clear threat to Sgt. Zahrieh. § 87(2)(b) was not exhibiting active aggression or resistance, as he did not make any threats towards the officers, and he did not appear as if he was about to hit Sgt Zahrieh. At the time, PO Zahrieh was ordering § 87(2)(b) to step out of the vehicle due to the seatbelt violation and had no reason to believe that § 87(2)(b) was armed. Furthermore, the BWC footage confirms that Sgt Zahrieh kept his taser pointed at § 87(2)(b) as he agreed to step out and was putting his shoes on while he was inside of the vehicle. Although § 87(2)(b) was complying with officers’ requests, Sgt. Zahrieh continued to threaten § 87(2)(b) with the use of a taser without police necessity.

As for Specification 2, none of the civilians, including § 87(2)(b) who broke free from the officers and fled posed a violent threat to the officers. Though § 87(2)(b) ultimately sustained minor injuries, given the speed at which he was running, Sgt Zahrieh deploying his Taser on § 87(2)(b) back increased the likelihood of serious physical harm to § 87(2)(b)

It is the CCRB's position that the risk posed to § 87(2)(b) safety by Sgt. Zahrieh's manner of apprehension, outweighed the necessity to apprehend him. Given the risk to § 87(2)(b) safety, the very minor charges for which he was being pursued (a seatbelt violation), and the fact that Sgt. Zahrieh's sole reason for deploying his Taser was § 87(2)(b) flight, Sgt. Zahrieh's deployment of his Taser was inconsistent with the Patrol Guide. The Patrol Guide explicitly states that fleeing should not be the sole justification for using a CEW against a subject and MOS should consider the severity of the offense, the subject's threat level to others, and the risk of serious injury to the subject before deciding to use a CEW on a fleeing subject.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests that the NYPD Charges and Specifications against Sgt. Jadd Zariel be served.

Respectfully submitted,
Andre Applewhite
p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 8, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303151 (Incident Date: April 12, 2023) regarding Sergeant Jadd Zahrieh, Tax No. 965635 (DADS No. 2024-31366)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 7, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant Jadd Zahrieh. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Zahrieh for the reasons expressed in my October 3, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Sergeant Zahrieh for the alleged misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office